

October 14, 2005



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

October 14, 2005

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 14265

EXPIRATION DATE: November 30, 2005

1. GRANTEE: Ecology Control Industries
Montclair, CA
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-time, one-way transportation in commerce of Sodium in non-DOT specification bulk containers. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.244 in that non-DOT specification packages are not authorized except as specified herein.
5. BASIS: This emergency special permit is based on the application of Ecology Control Industries dated October 7, 2005 submitted in accordance with § 107.117, and a determination that it is necessary to protect life and the environment.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Sodium	4.3	UN1428	I

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - The packages are two (2) containment vessels, each weighing approximately 2,000 lbs, constructed of $\frac{3}{4}$ inch steel. The vessels are irregular in shape and are flanged and bolted closed.
- b. A wooden crate will enclose each vessel in order to block and brace the vessels against any movement within the closed transport vehicle.
- c. The one-time, one-way transportation will be in a motor vehicle owned and operated by Ecology Control Industries. The shipment will originate in Montclair, CA and end in Kent, WA, a distance of approximately 1,156 miles.
- d. The motor vehicle will have team drivers in order to eliminate unnecessary stops.
- e. The drivers of the motor vehicle must be specifically trained in the hazards associated with the hazardous material being transported and be knowledgeable in the appropriate emergency response procedures.
- f. The drivers of the motor vehicle must have the capability to contact the plant and appropriate emergency response organizations in the event of an accident or an emergency involving the hazardous materials being transported.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at the facility where the packages are offered for transportation.

b. Each package must be marked 'DOT-SP 14265'.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special

permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety -- OHMEA, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.



Robert A. McGuire

Associate Administrator

Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AM